

SENATE BILL 2390

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 7; Title 10; Title 38; Title 39 and Title 40,
relative to immigration.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 7, Chapter 68, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Detained person" means an individual physically housed in a local detention facility pursuant to a federal detention agreement;

(2) "Federal detention agreement" means an intergovernmental service agreement or other contract or memorandum of understanding between a local law enforcement agency and a federal agency for the detention or housing of individuals in a local detention facility; and

(3) "Local law enforcement agency" means the law enforcement agency of a municipality, county, or metropolitan government, including a sheriff's office, municipal police department, or other local governmental entity that conducts law enforcement functions or operates or contracts for the operation of a detention facility in this state.

(b) A local law enforcement agency that detains a person pursuant to a federal detention agreement shall disclose, upon request, the following information concerning a detained person:

(1) Full legal name;

(2) Date of birth;

(3) Date of intake into the local detention facility; and

(4) The name and location of the detention facility in which the person is housed.

(c) Disclosure under subsection (b) must be made to:

(1) The detained person;

(2) An attorney representing or seeking to represent the detained person;

(3) An immediate family member of the detained person; and

(4) A court of competent jurisdiction.

(d) Disclosure required by this section must be made not later than twenty-four (24) hours from receipt of the request.

(e) A local law enforcement agency may temporarily withhold disclosure only upon a specific, articulable determination that disclosure would pose an imminent threat to the safety of the detained person or others. Any such determination must be documented in writing and made available for judicial review.

(f) A detained person held pursuant to a federal detention agreement must be afforded:

(1) Reasonable access to confidential in-person and remote visits with legal counsel;

(2) Reasonable access to telephone communication for legal purposes; and

(3) Access to family or personal visits consistent with the policies generally applicable to other persons held in the same detention facility.

(g) Access provided under subsection (f) must not be more restrictive than access afforded to other detained persons in the facility who are not held pursuant to a federal detention agreement.

(h) A local law enforcement agency or its employees or officers shall not retaliate against a detained person for:

- (1) Requesting disclosure under subsections (b) and (c);
- (2) Seeking access to legal counsel or family; or
- (3) Filing, assisting, or seeking assistance with a legal action related to detention or conditions of confinement.

(i)

(1) A detained person, or an attorney acting on the detained person's behalf, may seek declaratory or injunctive relief in a court of competent jurisdiction for a violation of this section.

(2) A prevailing plaintiff under this section may be awarded reasonable attorneys' fees and costs.

(j) This section must not be construed to:

- (1) Create liability for actions taken in good faith to comply with this section;
- (2) Regulate federal immigration enforcement or removal proceedings;
- (3) Require the release of a detained person; or
- (4) Limit or expand the authority of federal agencies or officers under federal law.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.